

Guernsey County Commissioners

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Regular Session
March 7, 2023

The Board of County Commissioners of Guernsey County, Ohio, met in regular session on the above date with the following members in attendance: Jack Marlin, and Ernest R. Gardner, Jr.

A motion was made by Commissioner Gardner, duly seconded by Commissioner Marlin, to authorize **Roadway Use and Maintenance Agreement (R23-02)**. This agreement is between Guernsey County and Ascent Resources – Utica, LLC, 1000 Utica Way, Cambridge, Ohio, 43725 for the site/pad named as Joe Memorial RCH GR.

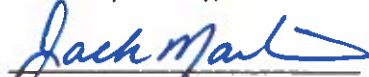
The site is located in **Richland Twp.**, approximately **1.24 miles (6.553')** North of the intersection of **S.R. 313 (Lashely road)** and **C.R. 74 (Salem road)** accessed off of Salem Road, specifically at the following coordinates: **39.948647, -81.440275**.

Operator intends to commence use of

The portion of CR# 74 (Salem Road) to be utilized by Operator hereunder, is that exclusive portion beginning at S.R. 313 and ending at the Joe Memorial RCH GR well pad access located at 39.948647. - 81.440275 for a distance of 1.24 miles

Details of the agreement can be found in file.

All vote yea.
Board of County Commissioners
Guernsey County, Ohio



Jack Marlin, Vice President



Ernest R. Gardner, Jr., Commissioner

GUERNSEY COUNTY HIGHWAY DEPARTMENT
ROAD AND BRIDGE USE MAINTENANCE AGREEMENT

Effective 4/3/2018

THIS AGREEMENT is entered at Cambridge, Ohio, by and between Guernsey County, a political subdivision, whose mailing address is 62782 Bennett Ave, Cambridge, OH 43725, hereafter the "Authority", and Ascent Resources – Utica, LLC., whose address is 1000 Utica Way, Cambridge, OH 43725 for the site/pad named as: Joe Memorial RCH GR (Hereafter "Operator"), and shall be as follows:

RECITALS

WHEREAS, Authority has control of county roads and all bridges within Guernsey County, Ohio and is required by law to keep such roads in good repair; and

WHEREAS, the "Operator" is the operator of certain oil and gas leasehold and/or related supporting operations, and intends to develop and operate the site named above. This site includes the equipment, facilities, impoundments, and pipelines necessary for development and operations, hereafter collectively referred to as "oil and gas development site". This site is located in Richland TWP, approximately 1.24 miles (6.553') North of the intersection of S.R. 313 (Lashley Road) and C.R. 74 (Salem Road) accessed off of Salem Road, specifically at the following coordinates: 39.948647, -81.440275.

WHEREAS, Operator performed improvements to C.R. 74 (Salem Road) in 2022 for the Wampum RCH GR Haul Route which encompasses this section of C.R. 74.

WHEREAS, Operator intends to commence use of:

The portion of CR# 74, (Salem Road) to be utilized by Operator hereunder, is that exclusive portion beginning at S.R. 313 and ending at the Joe Memorial RCH GR well pad access located at 39.948647, -81.440275 for a distance of 1.24 miles, and;

The operator will also need to cross the following bridges, either on County or Township Roads identified by SFN#(s) N/A, _____, _____.

for ingress to and egress from the oil and gas site, for traffic necessary for the construction, installation, operations and on-going support of the site, hereinafter referred to collectively as "Drilling Activity"; and

WHEREAS, Authority and Operator desire to enter an agreement, providing for the repair and maintenance of said roads and bridges thereon as a result of such Drilling Activity; and

WHEREAS, if any county or township roads contemplated herein contain any railroad crossings, Section 3 below shall apply;

NOW THEREFORE, in consideration of the good faith performance by each party of the mutual covenants hereinafter set forth, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Operator agrees to the maintenance and repair of said roads and bridges, to their pre-Drilling Activity condition or as modified pursuant to Appendix A, thereon for any damages thereto, as a result of Drilling Activity related to such sites.

FURTHER, the condition of all roadways and/or bridges shall be assessed daily by the Operator. Maintenance and repair shall be performed promptly to assure that the road and bridges are safe and secure for passage by the traveling public.

FURTHER, Operator shall also provide for the strengthening and upgrading of the roads and bridges if mutually agreed to be necessary, prior to or during any Drilling Activity. The areas and structures required to be strengthened and/or upgraded shall be determined by an engineer provided by the Operator with the approval of the County Engineer to be provided within thirty (30) days of a written request submitted by the Operator. Operator's engineer shall provide a written report to the County detailing the condition of the roads and appurtenances covered under this Agreement along with any recommendations, if necessary.

BOTH PARTIES FURTHER AGREE to the following additional terms and conditions:

1. The portions of County Roads and Structures proposed for use are previously described. Also, it is understood and agreed to that the Operator shall not utilize any other portions of these County Roads or cross structures not listed for any of its Drilling Activities hereunder.
2. Those portions of said roads and bridges and their appurtenances to be used by Operator hereunder and mutually agreed to require necessary strengthening and/or upgrading by the Operator's Engineer in conjunction with the County Engineer, shall be strengthened and/or upgraded to a condition sufficient and adequate to sustain the anticipated Drilling Activity by Operator, at Operator's sole expense, and with the advice and approval of the County Engineer as detailed in Appendix A. Thereafter, such roads shall be maintained by Operator for damages caused by Operator's Drilling Activity, at Operator's sole expense, throughout the term of this Agreement, to a level consistent with the condition of such roads at the commencement of its use by the Operator hereunder or as modified pursuant to Appendix A, as determined by the Operator's engineer and the Guernsey County Engineer. The maintenance of the aforementioned roads includes the use of a commercially recognized dust palliative to control the airborne dust created and/or contributed to by the Operator or the Operator's contractors and or agents.
3. The Operator shall give notice to the railroad at least thirty (30) days prior to any known Drilling Activity utilizing a railroad crossing so that a joint inspection can determine the condition of the crossing. Additionally, the Operator shall coordinate all work needing to be performed at a railroad crossing with the railroad company at least thirty (30) days prior to starting work on a railroad crossing. If the railroad company fails to respond to the Operator's notice of work needing to be performed at a railroad crossing within thirty (30) days of receipt of such notice, then the railroad waives all rights it has under this agreement with respect to the work specified in the notice. Work performed at a railroad crossing may include a separate agreement at the railroad's discretion. The Authority shall not be liable for any incidents arising out of or related to work performed at any railroad crossing pursuant to this Agreement or any separate Agreement between the Operator and the railroad company, or lack of notification by Operator.
4. Either the Operator or the Authority may terminate this Agreement with just cause following at least thirty (30) days written notice to the other of its intent to terminate. As soon as possible after receipt of such notice, the Authority and the Operator shall inspect said roads and bridges and their appurtenances. Following final inspection, the parties shall meet, and all restoration resulting from Operator's Drilling Activity shall be identified and thereafter completed by the Operator, at Operator's sole expense. Following completion of all restoration work, this Agreement shall terminate 180 days from the date of approval of the Termination Agreement as requested by the Operator. The bond posted pursuant to this agreement shall terminate at the same time as the Agreement.
5. If Authority determines that any additional traffic signage is needed, in the interests of safety, then Operator shall provide for such signage at Operator's sole expense. If any other safety concerns should arise while this Agreement is in effect, Operator and Authority agree that they will mutually discuss such concerns and reach a resolution satisfactory to all concerned.

6. Prior to the Drilling Activity on the Route, Operator shall post a bond or other surety in a form satisfactory to the Authority to cover the costs of any damage caused by the Drilling Activity on the Route by Operator. The bond or surety shall be in the amount of Three Hundred Thousand dollars & 00/100 dollars (\$300,000.00) per mile and One Hundred Thousand & 00/100 dollars (\$100,000.00) per structure. The Authority may vary these amounts based on the following considerations:

- a. A geotechnical analysis of the Route provided by the Operator and mutually accepted by the Authority and Operator exhibits that the Route's condition is sufficient for the expected traffic necessary for the development of the oil and gas development site.
- b. The Operator provides a geotechnical analysis of the Route, mutually accepted by the Authority and Operator, and based on that analysis, an Operator and Authority-approved maintenance plan for the Route or an Operator and Authority-approved preventative repair plan of the Route is attached to the Agreement as an addendum.
- c. The Operator has provided a sufficient bond or surety, mutually accepted by the Authority and Operator, in favor of the Authority for road usage by the Operator within the Authority's oversight.

 This Route is already covered under Surety Bond Number 612410205, ~~therefore no bond is required for this Agreement~~ 

7. All motor vehicles to be utilized by Operator hereunder, whether owned by Operator or others, shall comply with all legal size, load and weight limits in accordance with State Law, and all non-conforming vehicles shall require the proper State and local permit.

8. Operator shall furnish the Authority with a written Letter of Authority, setting forth all necessary contact information, including a twenty-four (24) hour emergency contact number, for the authorized local representative of the Operator, and such information shall be maintained and kept current concerned hereunder.

9. If Authority determines that any additional traffic signage is needed, or desired, because of this Agreement and in the interests of safety, then Operator shall provide for such signage at Operator's sole expense. If any other safety concerns should arise while this Agreement is in effect, Operator and Authority agree that they will mutually discuss such concerns and reach a resolution satisfactory to all concerned.

10. Operator shall protect, save, indemnify, and hold the Authority, its officials and employees harmless from any liability, claims, damages, penalties, charges, or costs which may arise or be claimed because of any violations of any laws or ordinances, or any loss, damage or expense, including injury or death to any person, from any cause or causes from Drilling Activity whatsoever.

11. Operator assumes all liability for subcontractors and or agents working on Operator's behalf.

12. This Agreement shall be binding upon Operator and Authority, and their respective successors and assigns.

13. In any event that any clause, provision or remedy in this Agreement shall, for any reason, be deemed invalid or unenforceable, the remaining clauses and provisions shall not be affected, impaired or invalidated and shall remain in full force and effect.

14. Agreement shall be governed by the laws of the State of Ohio. Also per the Ohio Atty. General's opinion #2012-029, the Operator shall improve and repair the county roads it uses at no cost to the county and is required to comply

with R.C. 4115.03-.03-.16 when the total overall project cost to the operator is fairly estimated to be more that the amount prescribed in R.C. 4115.03(B)(4).

"New" construction that involves roads, streets, alleys, sewers, ditches and other works connected to road or bridge construction threshold level has been adjusted to \$91,150.

"Reconstruction, enlargement, alteration, repair, remodeling, renovation, or painting" that involves roads, streets, alleys, sewers, ditches and other works connected to road or bridge construction threshold level has been adjusted to \$27,309.

15. This Agreement shall be in effect on 2 FEB. 7, 2023.

Executed in duplicate on the dates set forth below.

Authority

Operator

By:

Dave Wilson, County Commissioner

By:

DocuSigned by:

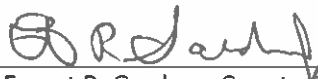
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By:


Jack Marlin, County Commissioner

Printed name: Tim A. Murray

By:


Ernest R. Gardner, County Commissioner

Company Name: Ascent Resources – Utica, LLC

By:


Paul E. Sherry County Engineer

Title: Director – Field Services

Dated:

2/24/23

Dated:

2/7/2023

Approved as to form:

Lindsey K. Angler, Guernsey County Prosecutor



3/4/23

Appendix A

RUMA # _____

Operator shall be required to (Check all that apply):

- 1) ☐ Provide for videotaping of the road prior to Drilling Activity.
- 2) ☐ Provide an engineering report detailing pavement thickness and composition, base thickness and composition, and subgrade composition, as and if reasonably determinable. Engineering report to also provide an analysis of conditions along with a recommendation for improvement. Should the geotechnical report show that the road is structurally sufficient to handle the anticipated loads, a minimum of 1.5" overlay on the length of the haul route shall be performed.
- 3) ☐ Upgrade CR#74 (Salem Road) in accordance with the approved plans.
- 4) ☒ Reimburse the Authority for minor maintenance of the road (or provide for a contractor to perform minor maintenance on 24-hour notice) for damages caused by Drilling Activities.
- 5) ☒ Reimburse the Authority for oversight of maintenance or other improvement activity.
- 6) ☐ No additional requirements are listed.

Operator Acknowledgment: _____

DocuSigned by:

RR0751988CEC44E

Signature

2/7/2023

Date